

No. 20-12897

**THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

DEEPGULF, INC. AND TOKE OIL AND GAS, S.A.

Plaintiff / Appellant,

v.

MARC MOSZKOWSKI,

Defendant /Appellee

On Appeal from the United States District Court for the Northern District of
Florida, Pensacola Division

Case No. 3: 18-cv-01466-TKW-MJF

APPENDIX TO APPELLEE'S BRIEF

VOLUME I: Minutes of Appellant's Board Meetings

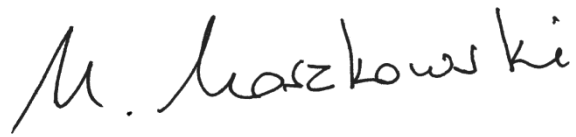
December 2, 2020

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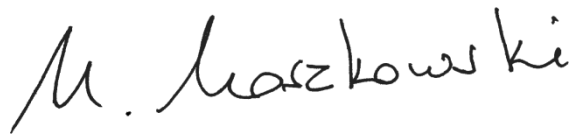
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CERTIFICATE OF SERVICE

1 HEREBY CERTIFY that I have, on this 2nd day of December 2020, furnished a copy of the foregoing to the Appellant's Counsel, Braden K. Ball, via the Court's E-filing system.



Marc Moszkowski, Pro Se

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Le Verdos

83300 Châteaudouble, France

DeepGulf Inc.
Board of Directors Meeting
December 26, 2017

Meeting called to order 2pm. Meeting held by conference call.

In attendance Rustin Howard, Chairman and Director
Thomas Johnson, Director

Since 66% of the board was in attendance it was declared that a quorum was present and that the board could conduct business at this meeting.

Notice of meeting was given on 12/24/2017 to all Board Members via email.

Board thanked William Lott for his service on the board and noted that Mr. Lott had informed the Chairman that he did not want to continue to serve on the DeepGulf Board.

Board welcomed Thomas Johnson as its newest director having been elected by Written Consent in Lieu of a Meeting by 2,201,000 shares. Noted that the Written Consent in Lieu of a Meeting has been presented to the Corporation on December 22, 2017 and is now part of the official records of the company as per Section 607.0704 of the Florida code.

Board notes that Marc Moszkowski has sought to and has communicated extensively with Mr. Johnson over the past 4 days. Mr. Johnson was asked to describe those communications. Mr. Johnson related that Mr. Moszkowski stated in conversation that the emails upset him so much he would be unable to participate in the board meeting.

Mr. Johnson reported that Mr. Moszkowski stated that there have been significant disagreements between him and Mr. Howard. When asked to provide documentation Moszkowski refused seeking to tell his story in verbal communication only.

Johnson has requested Moszkowski to provide access to Company records that are in his possession but Moszkowski refuses to provide requested information and declares that the records are not the property of DeepGulf. Mr. Johnson discussed Florida Statutes which indicate that everything that belonged to Toke now belongs to DeepGulf since it acquired all the shares of DG. Mr. Johnson also stated that he believes that Moszkowski thinks that records are his and that he will never give them to DeepGulf.

Mr. Howard added that as a director and as Chairman of the Board he has repeatedly asked Mr. Moszkowski to report on status and progress of DeepGulf operations and plans since late 2016. Mr. Moszkowski has refused to provide an update or report on status or progress.

Mr. Howard also stated that while acting as Chairman of the Board, he has repeatedly asked Mr. Moszkowski to provide the transaction line detail information on the three projects that he managed in Timor during the years on or about 2008, 2009, 2010, 2011, and 2012. Mr. Moszkowski has refused to provide such data, stating that the company, for various reasons, did not have a right to the information.

The Board, acting on what it believes to be in the best interest of the Company believes that it cannot support an executive officer that does not recognize the authority of the organization that grants him his authority.

Resolution was made, seconded and passed that until Mr. Moszkowski demonstrates that he recognizes the authority of the board and submits himself to it, Mr. Moszkowski cannot act as the President and the Executive Officer of the company and is hereby suspended from that role without pay. It is also resolved that Mr. Moszkowski be informed that his authority as Executive Officer has been suspended and that he be instructed not to represent himself to any person that he represents the company or is its Executive Officer.

Resolution made, seconded and passed to change DeepGulf, Inc. Bylaws ARTICLE VII, Section 9 to read as follows:

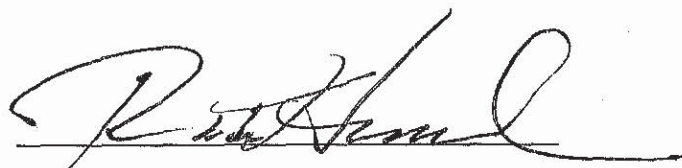
Section 9. The President. The President shall have the rights powers and authorities that are designated by the Board.

Mr. Howard reported that in verbal conversation on or about November 8, 2017 Mr. Lott informed the Chairman that Mr. Moszkowski had told Mr. Lott that Moszkowski had paid himself from Toke's funds over \$300,000 dollars which he used to pay the inheritance taxes on LaVerdas, a property in Provance France, and that it was paid out of profits from the three projects Toke completed in Timor. Mr. Howard further reported that in follow-up phone conversation between himself Mr. Lott, and Mr. Moszkowski, Moszkowski corrected the statement declaring that it was paid from Director's Salaries and not out of profits. In that conversation Mr. Moszkowski cited the amount of each individual check and that it totaled \$345,000 and that the money was used to pay the LaVerdas inheritance taxes, and that the remaining amounts were paid out of his personal funds.

In an unauthorized email sent to shareholders dated November 19, 2017, Mr. Moszkowski told the shareholders (page 3 paragraph 3) that "Toke Oil & Gas' President Director General's total compensation between 2008 and the end of the last project in 2012 amounted to \$345,000.00 out of a revenue of \$14,900,000.00, while the compensation of Toke Oil & Gas' other two Directors totaled \$959,764.22." Note that Moszkowski was the President Director General. In subsequent communications Mr. Moszkowski refused to provide further details of these or any other Toke O&G transactions, stating that DeepGulf had no rights to them.

The Board discussed affiliated party transactions and the creation of Toke Oil and Gas by Mr. Moszkowski and his ownership and controlling positions and interests in both companies, DeepGulf and Toke. In addition, Mr. Johnson stated that he wanted to know how the \$14.9 million was spent.

Resolution made, seconded and passed that the board establish a committee to conduct an investigation, and inquire of known contacts in East Timor, Australia, and Indonesia to find information about the transactions and determine the uses of funds derived from the three projects conducted by DeepGulf or by its Subsidiary Toke Oil & Gas.

A handwritten signature in black ink, appearing to read "Rustin Howard", written over a horizontal line.

Rustin Howard, Secretary

Board of Directors Meeting Minutes

DeepGulf, Inc.

18th September 2006

Meeting held at corporate offices at 700 S Palafox St, Pensacola, Florida.
Meeting called to order 2:18 PM by Rus Howard, Chairman of the Board.

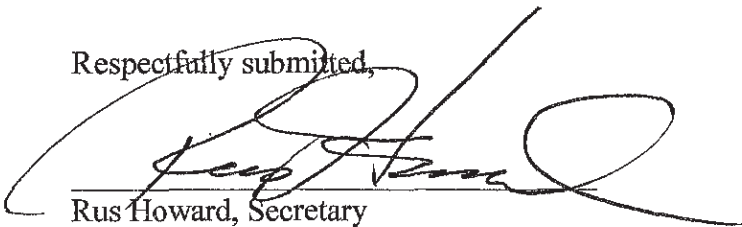
In attendance: Rus Howard,
Marc Moszkowski

Status of current operations was discussed.

The board thanked Marc for his commitment to the future of the company and his agreement to work outside the United States in potentially hostile conditions.

Having no other business the meeting was adjourned at 5:10 PM.

Respectfully submitted,


Rus Howard, Secretary

Emphasis added by Marc Moszkowski

Comments by Marc Moszkowski:

I never saw these minutes before the lawsuit, and cannot find any email containing them.

On 18 September 2006, I had just moved from Houston to Pensacola the day before and was very busy assembling and moving my furniture, opening boxes and sorting contents, and preparing the house for the first visit of my friend Kathy Tanner at 5 PM. There was no way in hell that I could have spent 3 hours in Howard's office for this alleged meeting.

Furthermore, I had just moved to Pensacola and our interest was exclusively in the Gulf of Mexico, so why on Earth would the Board thank me for activities that were not to be considered for more than a year? The second highlighted paragraph was obviously copied/pasted from the alleged 15 October 2007 Board meeting, more than a year later, which would have coincided with my project to travel to East Timor.

The meeting and the minutes were therefore forged by Howard.

Board of Directors Meeting Minutes

DeepGulf, Inc.

October 15, 2007

Meeting held at corporate offices at 700 S Palafox St, Pensacola, Florida.
Meeting called to order 2:11 PM by Rus Howard, Chairman of the Board.

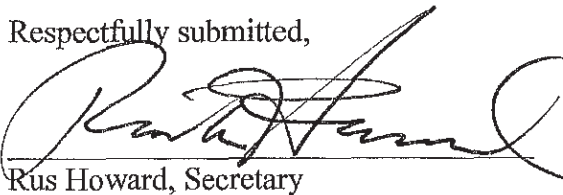
In attendance: Rus Howard,
Marc Moszkowski,

Status of current operations was discussed, including: potential for pipeline operations in East Timor and Australia. Resolution passed to support Marc's Executive role in East Timor and related countries. The board agreed to pay all travel, lodging and associated expenses in order for Marc to carry out overseas operations required to secure future contracts,

The board thanked Marc for his commitment to the future of the company and his agreement to work outside the United States in potentially hostile conditions.

Having no other business the meeting was adjourned at 5:00 PM.

Respectfully submitted,



Rus Howard, Secretary

Emphasis added by Marc Moszkowski

Comments by Marc Moszkowski:

I never saw these minutes before the lawsuit, and cannot find any email containing them.

On October 15, 2007, between 2:11 PM and 5:00 PM, I was traveling in my car, between Fort Stockton and Fredericksburg in West Texas, about 900 miles west of Pensacola, in an area which had then no cell phone coverage, and at a time when roaming costs were anyway extravagant. I was 900 miles from Pensacola on that day, and could not anyhow have had the 3 hour meeting on the phone, either from a cell phone or a payphone.

The meeting and the minutes were therefore forged by Howard after the fact.

Board of Directors Meeting Minutes
DeepGulf, Inc.
February 4th, 2008

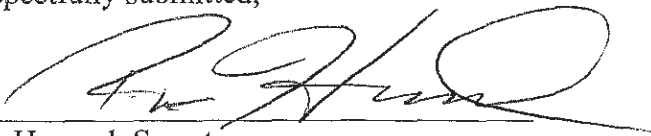
Meeting held at corporate offices at 700 S Palafox St. Pensacola, Florida.
Meeting called to order 2:05 PM by Rus Howard, Chairman of the Board.

In attendance: Rus Howard
Marc Moszkowski

Status of current operations were discussed, Marc gave information regarding the potential for pipeline operations in East Timor following his recent time spent researching the project. The Board learned that it would not be possible to do business in Timor as a US corporation. A resolution was passed to create a subsidiary company to be named Toke Petroleum.

Having no other business the meeting was adjourned at 5:00 PM.

Respectfully submitted,


Rus Howard, Secretary

Emphasis added by Marc Moszkowski

Comments by Marc Moszkowski:

Marc Moszkowski believes that the purported resolution was passed unilaterally by Mr. Howard long after the fact, since a) said resolution was never communicated in any form to Moszkowski until discovery, a decade later, and b) the name chosen for the purported subsidiary was "Toke Petroleum", a company that not only already existed at the time but was the company from which the first request had been received from East Timor in September 2007. Marc Moszkowski does not believe that he would have agreed to DeepGulf "creating" a subsidiary company that not only already existed but also belonged to others, and he strongly suspects that the resolution, like so many others, was fabricated after the fact by Mr. Howard.

Board of Directors Meeting Minutes
Deep Gulf, Inc.
October 3, 2008

Meeting held by phone

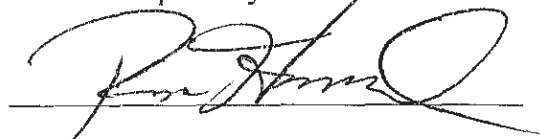
In attendance: Rus Howard
Marc Moszkowski

Noted that authorization for Mr. Moszkowski's salary could not be found in board meeting minutes, the board then voted and passed a resolution setting the salary for Mr. Moszkowski, the company President, at 132,000 per year, and ratified salaries paid to him since January this year.

After some discussions and noting that Mr. Howard's other obligations did not permit him to commit full time to the company, the board then voted on and passed resolution setting a part time salary for Mr. Howard, company Chairman and Secretary, at 77,700 per year, starting on the next pay cycle.

The meeting was then adjourned.

Minutes Respectfully Submitted



Emphasis added by Marc Moszkowski

Comments by Marc Moszkowski:

I never saw these minutes before the lawsuit, and cannot find any email containing them.

On 3 October 2008, I was in Pensacola, so why would the meeting have been held by phone when my desk was about 75 ft from Howard's house? The 3 October 2008 minutes of meeting were fabricated by Howard expressly for the lawsuit. I would never have agreed to Howard receiving \$77,700 a year for working a couple of hours per week in his comfortable office in Pensacola while I had \$132,000 for working 100 hours weeks in an unhealthy jungle on the other side of the planet. Howard created the minutes when he realized that it didn't make sense for him to accuse me of having received a salary from Toke without DeepGulf's board's authorization, while he did not bother to obtain board's authorizations for his and my salaries. I first learned of Howard's salary fortuitously, around November 7, 2009, more than a year later, and was not a little peeved by it. Incidentally, Howard at the time admitted a salary of \$60,000 only.

Minutes of the
Special Meeting of Deep Gulf Board of Directors
15 January 2016

Directors Attending:

Marc Moszkowski

Tom McMillan II

Bill Lott, arrived late 10:42

Rus Howard

The meeting was called by Company President Marc Moszkowski.

Notice of meeting was sent by email to all members of the board on 1/13/2016 by Marc Moszkowski to which all members acknowledged receipt.

Rus welcomed everyone to the meeting.

The meeting was called to order at 9:44 pm.

The meeting was then turned over to Marc Moszkowski.

M. Moszkowski reviewed status and progress on various projects and ventures, including potential JV Partners in Korea, status of ECTL project and politics in East Timor, and on the financial condition of the company and the need for funding. Rus expressed concern about reliability of information about happenings in Asia.

Some discussion was had about the nature and detail of the C-GAS Joint Venture including possible terms of agreement and potential margins for the JV partners.

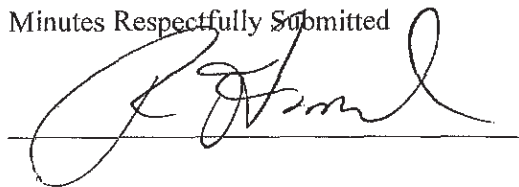
Marc asked about his salary and about unreimbursed expenses during startup including travel to Timor to secure the company's first contract. After some discussion he said he would not claim the pre-revenue expenses if the company would give him backpay for any unaccrued salary after the company secures revenue or investor capital. The Board agreed.

No resolutions were proposed.

Rus made a motion to adjourn the meeting, which was seconded by Bill Lott.

The meeting ended at 12:09 pm.

Minutes Respectfully Submitted



Emphasis added by Marc Moszkowski

Comment by Marc Moszkowski:

I never saw this version of the minutes before the lawsuit, and cannot find any email containing it.

Both highlighted paragraphs were added by Howard after he had submitted the minutes of meeting to me (see original next page). I believe he added the paragraphs especially for the lawsuit.

Minutes of the
Special Meeting of Deep Gulf Board of Directors
15 January 2016

Directors Attending:

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No resolutions were proposed.

Rus made a motion to adjourn the meeting, which was seconded by Bill Lott.

The meeting ended at 12:09 pm.

Minutes Respectfully Submitted

Comment by Marc Moszkowski:

This is the original of the Minutes of Meeting submitted by Mr. Howard to Marc Moszkowski three days after the meeting, on 18 January 2016..

Executive Order on Salaries

Sept 28, 2012

Skype conversation
Rus and Marc

After lengthy discussion on how Israel must defend itself against Libya and the bomb and a few updates on status in Timor, I raised the issue of payroll and the lack of funds.

I told marc we are getting very low on funds. I told him that we can make the next payroll but I thought we should cease to pay payroll. He said he needed the money.

I explained to him that if we accrue payroll and not pay it, but book the amount due as a debt we still must pay the taxes and it would soon consume all of our remaining funds.

I told him that we could pay him some of the money that the company owed him since there are no payroll taxes on repayment of debt. He was very happy to hear that.

We agreed to not accrue any further executive officer payroll till the company had funds to pay.

Also discussed travel plans to Dili on First of October.



Comments by Marc Moszkowski:

See Marc Moszkowski's comments in the next page, showing why the alleged "Executive Order" is a forgery.

I never saw this document before the lawsuit, and cannot find any email containing it, or relating it.

Beside, what bizarre rationale would Howard have had to write a secret summary of the phone conversation on the very day of the phone conversation, without sharing it with Marc Moszkowski, or sending him an email relating it?



**COMMENTS BY MARC MOSZKOWSKI ON THE "EXECUTIVE ORDER
ON SALARIES DATED SEPTEMBER 28, 2012"**

This document is a one-sided transcript of a Skype conversation. I don't see how it could have any legal value. It is in no way an "*Executive Order*".

The first paragraph seems to be quite irrelevant and to have been inserted derisively after the fact to add some credibility to the authenticity of the document.

I can't find a copy of the document anywhere in my emails or Skype messages. Very likely, the document was forged after the fact.

As a matter of fact, I was in Sydney, Australia, on Sept. 28, 2012. Howard had just spent the whole week with me in Rodney Lewis' house in Sydney, and, on Sept. 28 had just returned to Pensacola the day before. I cannot imagine that he would not have addressed such an important issue while we spend the week together 24/7 in the same house and in adjacent bedrooms, but waited a day after his returning to Pensacola to address it, allegedly on Skype.

I was the Chief Executive Officer at the time. How come the Chairman of the Board issued the Executive Order, and not me, especially since Howard has repeatedly claimed that he was not an executive officer? He could have asked me to issue the order, or given me a draft for me to sign. Also, how come he did not send me a copy by email of this extremely important decision? The answer is that, like for so many other corporate documents produced as evidence, it is a forgery.

I think Ball must produce the original computer files relating to all the corporate documents I have said were forged after the fact. We already requested those from him, but did not receive any so far. He must also

produce the original print-outs, so we can analyze them for authenticity. Either the print-outs are recent and Howard has the computer files, or he does not have the files and the print-outs can be dated.

What is the "*some money that the company owed him*"? It seems Howard disguised the salaries until March 2013 as repayment of debt in order to evade paying payroll taxes, which indeed were fraudulently not paid.

Until discovery, I did not know of Howard's commitment to DHS to guarantee my salaries on his personal assets.

MMM